

TENTATIVE RULINGS for LAW and MOTION

April 28, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **AgWest Farm Credit, PCA v. Eaton Drilling Company, LLC**
 Case No. CV2025-3720

Hearing Date: **April 28, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff AgWest Farm Credit, PCA's unopposed application for right to attach order and order for issuance of writ of attachment against defendant Eaton Drilling Co., LLC is **GRANTED**. (Code Civ. Proc., § 484.010 et seq.) The Court finds that plaintiff has satisfied the requirements for the issuance of right to attach order and writ of attachment. (See Code Civ. Proc., §§ 483.010, 484.020, 484.030, 482.110; Green decl., ¶¶ 2-20, Exhibits A-I; Dreher decl., ¶¶ 1-7.)

Parties are **DIRECTED TO APPEAR** for oral argument. (Code Civ. Proc., § 484.090.)

TENTATIVE RULING

Case: **Bermudez v. Kia Motors America, Inc.**
Case No. CV2023-0867

Hearing Date: **April 28, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, plaintiff Mayra Bermudez's motion for attorneys' fees, costs, and expenses is **CONTINUED** to **June 9, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Hendrix v. Ebay Inc.**
Case No. CV2026-0240

Hearing Date: **April 28, 2026** **Department Fourteen** **9:00 a.m.**

Defendant eBay Inc.’s motion to compel arbitration and stay action is **GRANTED**. (Code Civ. Proc., § 1281 et seq.) “A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8.) Defendant has established the existence of an arbitration agreement between defendant and plaintiff Shannon Hendrix. (*Ibid.*; Code Civ. Proc., § 1281.2; Colin decl., ¶¶ 8-18, Exhibits A & B.) Plaintiff has failed to show that a defense exists, which would prevent the Court from compelling arbitration. (See *Jenks, supra*, Cal.App.4th at p. 8.) Specifically, plaintiff has not proven that plaintiff and defendant had an employer-employee relationship, or the arbitration agreement is procedurally and substantively unconscionable. (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329; *Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704; *Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1248; Colin decl., ¶¶ 3-9 & 13, Exhibit B, §§ 1, 18; Complaint, ¶¶ 3-10.) Further, plaintiff has not shown that leave to conduct discovery is warranted. (See *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412-413.)

As to defendant eBay Inc., this case is stayed, pending the completion of arbitration. (Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Tanberg v. Rosas**
 Case No. CV2025-0564

Hearing Date: **April 28, 2026** **Department Fourteen** **9:00 a.m.**

Andrea V. Sanchez of Berg Injury Lawyers' unopposed motion to be relieved as counsel for plaintiff Cory Tanberg is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

If no hearing is requested, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client.** (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Velasco v. Nissan North America, Inc.**
 Case No. CV2025-1815

Hearing Date: **April 28, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Juan Velasco’s motion to compel the deposition of defendant’s person(s) most knowledgeable with production of documents is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 2025.450, subd. (a).) On April 10, 2026, defendant Nissan North America, Inc. offered the date of May 15, 2026, for the deposition of defendant’s person most knowledgeable. (Taylor decl., ¶ 3.) Plaintiff does not assert that this date is unavailable and therefore, there is nothing for the Court to compel. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 [“Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights”].)